VILLAGE NETACAD APP

TERMS AND CONDITIONS OF USE

These terms are a binding agreement between you and us. Please read them before you use the Village NetAcad APP (the "**App**"). If you do not agree, please do not use the App.

1. Who may use the App

1.1 **Adults.** You must be at least 18 years old and legally able to enter into contracts in South Africa to open your own account.

1.2 **Learners under 18.** A learner under 18 may use the App only with the prior consent of a parent or legal guardian, who agrees to these terms on the learner's behalf and is responsible for the learner's use of the App. We may ask for proof of that consent.

1.3 **Institutions.** If you use the App through a school, college, employer or other institution (an "**Institution**"), your Institution's rules also apply to you. If its rules and these terms conflict, these terms apply to your dealings with us.

1.4 You promise that the information you give us is accurate and up to date, and that you will keep it that way.

2. Your account

- Keep your username and password private and do not share your account with anyone.
- Tell us as soon as you know or suspect that someone has accessed your account without permission, and change your password.
- You are responsible for activity on your account, unless it results from our failure to take reasonable security measures or from our fault.
- You may close your account at any time through the App or by contacting us.

3. Learning content and our intellectual property

3.1 We, our licensors and content partners own the App and all content in it, including courses, assessments, text, videos, software, logos and designs.

3.2 We give you a limited, personal, non-exclusive, non-transferable and revocable licence to use the App and its content for your own learning, for as long as these terms apply to you.

3.3 You may not copy, share, sell, publish, scrape or adapt the content without the owner's written consent, except as the law allows (for example, fair dealing under the Copyright Act 98 of 1978).

3.4 Certificates and badges are issued to you personally on completing the stated requirements. We may withdraw one if it was obtained by cheating, impersonation or fraud.

4. How you must use the App

You agree that you will not:

- cheat in assessments, let someone else do your work, or pretend to be someone else;
- interfere with the App or its security, or use bots, scrapers or other automated tools to access or copy it;
- upload or share anything that is unlawful, defamatory, hateful, harassing, sexually explicit, infringes someone's rights or contains malware; or
- use the App to harm, harass or collect information about other users.

5. Your content and AI features

5.1 You keep ownership of what you submit (such as assignments, forum posts and feedback). You give us a non-exclusive licence to host, display and process it so that we can run the App, show it to your instructor or Institution, and, in de-identified form, improve the App.

5.2 The App's AI features may produce answers that are inaccurate or incomplete. Use them as a study aid, not as professional advice, and verify important information. Please do not enter other people's personal information or your own sensitive information into them.

5.3 We are not responsible for what other users post. We may remove content that breaches these terms, and you can report content to us.

6. Fees, payments and refunds

6.1 Some features may require payment. The price, what is included and the billing period will be shown to you before you pay, and we will confirm your order in writing. Prices include VAT where VAT applies.

6.2 Our payment service providers have their own terms, which you accept when you choose their payment method. They, and not we, are responsible for securing your payment details.

6.3 **Cooling-off.** If you buy from us by electronic transaction, you may cancel the agreement within 7 days of concluding it, without giving a reason or paying a penalty, as section 44 of the Electronic Communications and Transactions Act 25 of 2002 provides, but only where the Act applies to your purchase. We will refund you, less the direct cost of returning any goods and, for services already provided at your request, a fair charge for them as the law allows. This does not limit any right you have under the Consumer Protection Act 68 of 2008 (CPA).

6.4 We may cancel an order or course place before it starts where, for example, there is a pricing or listing error, payment is not received, or we suspect fraud or abuse. If we do, we will refund anything you have paid for it.

6.5 Refunds are made to your original payment method within **seven working days.**

7. Availability, changes and suspension

7.1 We work to keep the App available and accurate, but it may be unavailable from time to time for maintenance, updates or reasons beyond our control. We will correct errors as soon as we reasonably can after we learn of them.

7.2 We may change, suspend or end any part of the App. Where a change materially affects you, or we end a paid service, we will give you reasonable notice and refund the unused part of any fee you have paid.

7.3 We may suspend or terminate your account, on notice where practicable, if you materially breach these terms, put others or the App at risk, or the law requires it. We will tell you why, and you may ask us to review our decision.

8. Privacy and your information

We process your personal information in line with our Privacy Policy https://villagenetacad.co.za/docs/privacy-policy.pdf and the Protection of Personal Information Act 4 of 2013 (POPIA). The Privacy Policy forms part of these terms.

9. Our responsibility and your risk

IMPORTANT: PLEASE READ CAREFULLY. This section limits our liability and asks you to accept certain risks.

9.1 Like all online services, the App is subject to risks outside our control, such as internet outages and malicious software. We take reasonable steps to protect the App and your information, but we cannot guarantee that the App will be uninterrupted or error-free.

9.2 To the extent that the law allows, we are not liable for loss or damage that you suffer because of: (a) interruptions or errors that we could not reasonably have prevented; (b) your own breach of these terms or failure to keep your account secure; (c) content posted by other users or third parties; or (d) indirect or consequential loss, such as loss of profit or opportunity.

9.3 Nothing in these terms excludes or limits our liability for our gross negligence, intentional misconduct, death or personal injury, or any liability that cannot lawfully be excluded, including under the CPA.

9.4 The App is a learning and transactional aid. We do not promise that completing a course will lead to a particular qualification, employment or exam result unless expressly stated.

10. Third-party content and links

The App may link to or include content from third parties, other websites and tools. They have their own terms and privacy policies, and we are not responsible for them. Please read them before you use them.

11. Disputes and governing law

11.1 If something goes wrong, please contact us on 0128440176.

11.2 These terms are governed by the laws of the Republic of South Africa. Any court with jurisdiction may hear a dispute between us, and nothing here stops you from approaching the National Consumer Commission, the Consumer Tribunal, an ombud, the Information Regulator or a court of your choice, as the law allows.

11.3 If you are unhappy with the outcome of your complaint and it has not been resolved to your satisfaction, you may contact the Consumer Goods and Services Ombud ("CGSO") to assist you in resolving your complaint. You may lodge a complaint with the CGSO here or contact them using the following details:

- Website: https://www.cgso.org.za/cgso/
- Call: 0860 000 272
- Email: info@cgso.org.za

12. General

12.1 **Our agreement** consists of these terms, our Privacy Policy, the payment terms shown at checkout and any other rules we expressly say apply. If they conflict, these terms apply first, except for the Privacy Policy on matters of personal information.

12.2 **Changes.** We may update these terms, for example when the App or the law changes. We will publish the new version in the App and notify you in the App or by email at least seven days before a material change takes effect. If you use the App after that date, you accept the change; if you do not agree, you may close your account and, if you have prepaid, we will refund the unused part.

12.3 **Severability.** If a court finds any part of these terms invalid or unenforceable, the rest remains in force.

12.4 **No waiver.** If we do not enforce a right immediately, we do not give it up.

12.5 **Transfer.** You may not cede or transfer your rights or obligations under these terms without our written consent. We may transfer ours to a successor of our business on notice to you, if your rights are not reduced.

12.6 **Whole agreement.** These terms and conditions are the whole agreement between us about the App.

13. Notices and information about us

We will send notices to the email address on your account. You must send notices to us in writing at the email or physical address below. An email notice is received on the day it is sent, unless the sender receives a delivery failure message; a notice delivered by hand is received on the day of delivery. We may change these details by updating them in the App.

Registered name	Digititan Holdings (Pty) Ltd
Registration number	2017/361732/07
Main business	Information and Communication Technology
Directors / office bearers	Dennis Memela
Physical address for legal notices	The Innovation Hub, No.1 Mark Shuttleworth Street, Lynwood, Pretoria, 0087

Email and telephone	dennis@digititan.co.za; 0128440176
Information Officer	Nelisiwe Msiza; nelisiwem@digititan.co.za
Help Centre	info@digititan.co.za
PAIA Manual	Digititan Holdings (Pty) Ltd is registered with the Information Regulator. Registration number: 2026-06742